

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alyssa Rogowski	Team: Squad #07	CCRB Case #: 201901038	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/11/2019 8:35 AM	Location of Incident: 125th Street and St. Nicholas Avenue Subway Station, the entrance at West 127th Street	18 Mo. SOL 2/25/2021	Precinct: 26
Date/Time CV Reported Mon, 02/04/2019 1:30 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 02/04/2019 1:30 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edwin Collado	13527	952604	TB ATU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Mathews Samuel	04748	929112	TB ATU
2. POM Modesto Acosta	01352	956368	TB ATU
3. POM John Garcia	25991	943275	TB ATU

Officer(s)	Allegation	Investigator Recommendation
A . POM Edwin Collado	Abuse: Police Officer Edwin Collado threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Edwin Collado	Abuse: Police Officer Edwin Collado threatened § 87(2)(b) with the use of force.	B . Unsubstantiated

Case Summary

On February 4th, 2019, § 87(2)(b) filed the following complaint in-person at the CCRB.

On January 11th, 2019 at around 8:35am, § 87(2)(b) entered the 125th Street and St. Nicholas Avenue Subway station in Manhattan from the 127th Street entrance. § 87(2)(b) did not have enough for the fare on his card and the card vending machines were only accepting coins, so § 87(2)(b) stepped over the turnstile without paying. When § 87(2)(b) reached the platform for the downtown A train, four plainclothes officers, identified as Police Officers Edwin Collado, John Garcia, Modesto Acosta, and Sergeant Mathews Samuel all of the Transit Bureau Anti-Terrorism Unit, stopped him for fare evasion.

After handing over his ID, § 87(2)(b) reached into his coat pocket to get his phone. PO Collado told § 87(2)(b) “Do not put your hands in your pocket.” PO Collado then stated, “Don’t reach into your pockets, do you know I have the right to handcuff you?” (**Allegation A: Abuse of Authority, exonerated**). § 87(2)(b) began to speak in a loud voice about how he would not be threatened. § 87(2)(b) s raised voice visibly aggravated PO Collado, who then allegedly came swiftly towards § 87(2)(b) in an aggressive manner as if to charge him and PO Garcia had to extend his left arm across PO Collado’s chest to hold him back (**Allegation B: Abuse of Authority, unsubstantiated**). § 87(2)(b) then wrote down all the officers’ names and badge numbers, and after being issued a summons, left.

The investigation obtained video from MTA that captures § 87(2)(b) jumping the turnstile (Board Review 01). No footage was obtained capturing the allegations or § 87(2)(b) s interaction with officers. § 87(2)(b)

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Edwin Collado threatened to arrest

§ 87(2)(b) provided an in-person statement to the CCRB (Board Review 02) § 87(2)(b) recalled that after he jumped the turnstile, he walked down the stairs towards the platform for the downtown A train. He had just reached the platform when he heard someone calling, “Sir!” behind him. When he turned towards the voice, Sgt. Samuel approached him and presented his badge to § 87(2)(b) stating that he was a member of the NYPD and working as team leader of a task force. Sgt. Samuel asked him if he was aware that he had just walked through the turnstiles to which § 87(2)(b) replied yes but that none of the machines were accepting cash or card. Sgt. Samuel replied that the MTA was aware of the issue with the machines. Sgt. Samuel then asked for § 87(2)(b) s ID. § 87(2)(b) reached into his wallet and provided his ID then asked, “Are you seriously going to do this at this time knowing that the machines are not working properly and knowing that people have no other recourse?” Sgt. Samuel told him that he could take that up with the MTA.

While he was speaking with Sgt. Samuel, three other plainclothes officers, PO Collado, PO Garcia, and PO Acosta, formed a loose circle around § 87(2)(b) § 87(2)(b) became irritated because he believed that the officers had been surveilling the issue with the patrons and using the broken machines as an opportunity to issue summons and rather than assisting the patrons. § 87(2)(b) then decided that it would probably be a good idea to film the situation so he reached into his right coat pocket to get his phone.

§ 87(2)(b) recalled that when he reached into his right coat pocket to get his phone, PO Collado told § 87(2)(b) “Do not put your hands in your pocket.” § 87(2)(b) complied and replied that the officers had just had him reach into his pocket for his ID. § 87(2)(b) did not remember if he told PO Collado why he had been reaching for his phone but knew he tried to explain his action of reaching into his pocket. PO Collado then stated, “Don’t reach into your pockets, do you know I have the right to handcuff you?”

PO Garcia, PO Acosta, Sgt. Samuel, and PO Collado were all interviewed (Board Review 03, 04, 05, 06). All the officers recalled that § 87(2)(b)’s demeanor was heightened and angry and that he was speaking at a loud volume for the entirety of the interaction. None of the officers recalled § 87(2)(b) communicating what he had been trying to get out of his pockets until the end of the interaction, when he asked and was permitted to go into his bag for a notebook to write down their badge numbers. Though there are some discrepancies amongst the officers about whether § 87(2)(b) was reaching into his pockets or his bag, PO Acosta, PO Collado, and Sgt. Samuel all recalled that PO Collado had given at least one order to § 87(2)(b) to keep his hands in view prior to informing him that he could be handcuffed for the officers’ safety. Though PO Garcia did not hear PO Collado inform § 87(2)(b) that he could be handcuffed, PO Garcia stated that it is standard practice for officers to instruct civilians to keep their hands visible during stops and to inform civilians that they can be handcuffed during stops.

NYPD Patrol Guide Procedure 221-02 states that if the use of de-escalation techniques fail to persuade an uncooperative suspect to cooperate, the member of service should, if appropriate and consistent with officer safety, advise the offender that physical force or other devices will be used to handcuff/restrain him before applying such force, if appropriate (Board Review 10).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **allegation A** be closed as **exonerated**.

Allegation B—Abuse of Authority: Police Officer Edwin Collado threatened § 87(2)(b) with the use of force.

When PO Collado told § 87(2)(b) he could be handcuffed, § 87(2)(b) felt that he had been threatened. § 87(2)(b) stated in his interview that in his professional capacity, § 87(2)(b)

[REDACTED]
[REDACTED] . After PO Collado told § 87(2)(b) that he could be handcuffed, § 87(2)(b) began to speak in a loud voice, stating “No you will not handcuff me, you will not threaten to handcuff me, you will not threaten to arrest me.” § 87(2)(b) clarified that at this point, they were all standing near a bench on the platform. PO Acosta was behind § 87(2)(b) and to his left, PO Garcia was in front of him slightly to his left, PO Collado was in front of him slightly to his right, and Sgt. Samuel was more towards his right side. § 87(2)(b)’s raised voice visibly aggravated PO Collado, who then came swiftly towards § 87(2)(b) in an aggressive manner as if to charge him. PO Collado did not raise his hands but came towards § 87(2)(b) in a menacing manner. PO Garcia had to extend his left arm across PO

Collado's chest to hold him back and stated to PO Collado, "no, no, no." § 87(2)(b) stated that PO Collado had to be held back twice during this interaction after § 87(2)(b) had been reaching for his phone.

PO Garcia, PO Acosta, PO Collado, and Sgt. Samuel all recalled that after PO Collado told § 87(2)(b) he could be handcuffed, Sgt. Samuel stepped in and tried to diffuse the situation by explaining the reason and result of the stop again. PO Garcia did not at any point have to stop PO Collado from going towards § 87(2)(b) and stated that he had been off to the side throughout the interaction working on the summons. § 87(2)(b) was standing about three feet from PO Collado during the interaction and at no point did PO Garcia observe the distance between PO Collado and § 87(2)(b) close to less than three feet.

PO Acosta did not observe PO Collado come aggressively towards § 87(2)(b) nor did he observe an officer have to restrain PO Collado. PO Acosta clarified that throughout the encounter there was a bench between PO Collado and § 87(2)(b). PO Acosta stated that Sgt. Samuel did jump in and cut PO Collado off but that Sgt. Samuel never made physical contact with PO Collado to keep him back.

When asked if he at any point observed PO Collado come aggressively towards § 87(2)(b) or if PO Collado had to be restrained from coming towards § 87(2)(b) Sgt. Samuel stated that the officers were all close to one another throughout the interaction. When asked if PO Collado made any movements further towards § 87(2)(b) Sgt. Samuel stated that he did not recall PO Collado doing so and reiterated that the platform was small.

PO Collado recalled that through the moment when he had to order § 87(2)(b) to keep his hands out of his pockets, PO Collado was the officer primarily engaging with § 87(2)(b). After PO Collado ordered § 87(2)(b) to keep his hands out of his pockets, Sgt. Samuel stepped in to try and calm § 87(2)(b) down. PO Collado denied that he at any point during the interaction came closer to § 87(2)(b) and denied that he ever came aggressively towards § 87(2)(b) or ever had to be restrained by another officer.

§ 87(2)(g)
It is therefore recommended that **allegation B** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (Board Review 07).
- PO Edwin Collado has been a member of service for six years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
On March 29, 2019, a request for any record of a Notice of Claim being filed in regard to this complaint was sent to the New York City Office of the Comptroller. The response will be added to the case file upon receipt. (Board Review 09).

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date